

Prem Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 9 September 2009 · WRIT - C No. 45154 of 2009 · **Writ allowed; recovery citation quashed; final assessment directed.**

HEADNOTE

Clause 8.1(b) of the U.P. Electricity Supply Code, 2005 requires a final theft assessment, recording service of the provisional assessment and an opportunity of personal hearing, before any recovery. Non-filing of a reply does not convert the provisional bill into a recoverable demand. Recovery citation quashed; assessing officer directed to complete final assessment.

FACTUAL SUMMARY

In a departmental check the petitioner was found unauthorisedly drawing electricity to run a 5 HP motor for a flour mill. An FIR was lodged on 5 July 2007. A provisional assessment bill dated 10 July 2007 was served; the petitioner filed no reply. The licensee then issued a recovery certificate and a citation (narrated as 26 June 2009, quashed as 29 June 2009) to recover that provisional assessment. The petitioner challenged the citation in writ.

REUSABLE CONSTRUCTIONS

1. A provisional theft assessment under clause 8.1(b) of the U.P. Electricity Supply Code, 2005 cannot itself be put to recovery; the assessing officer must complete a final assessment recording service and an opportunity of personal hearing. ¶ 1
2. Non-filing of a reply to a provisional theft assessment does not dispense with final assessment or authorise recovery of the provisional demand. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1(b)

theft assessment — final assessment before recovery

HOLDING

Clause 8.1(b) of the U.P. Electricity Supply Code, 2005 requires, after service of a provisional theft assessment, a final assessment in which the competent authority records that the consumer was served and given an opportunity of personal hearing. Because no final assessment was made and the provisional bill was sent for recovery merely for want of a reply, the statutory procedure was not followed. The recovery citation is quashed and the matter is remanded for final assessment in accordance with the Code. ¶ 1